

**UNITED STATES DISTRICT COURT
DISTRICT OF MASSACHUSETTS**

**PUBLIC NOTICE
ADDITION TO LOCAL RULE 40.1 (g)**

The United States District Court for the District of Massachusetts is considering and is publishing for comment the following addition to Local Rule 40.1 – Assignment of Cases.

L.R. 40.1 ASSIGNMENT OF CASES

(g) Related Civil Cases.

- (5) **Social Security Cases.** Any social security case filed in the district court following remand shall be deemed related to the initial case notwithstanding subsection (g)(4).

All subsequent subparagraph numbers of section (g) to be incremented accordingly. A redline version is attached to this notice.

Those wishing to comment on the proposed amendment to the Local Rules for the District of Massachusetts may do so in writing. All comments must be received on or before October 21, 2025, and should be addressed to:

Robert M. Farrell, Clerk of Court
United States District Court
United States Courthouse - Suite 2-300
Boston, MA 02210

This public notice has been posted to the “Announcements” and “Rules” pages of the court’s web site at <http://www.mad.uscourts.gov>.

September 23, 2025

/s/ Robert M. Farrell
Clerk of Court

Proposed Amendment Local Rule 40.1(g)

(g) Related Civil Cases.

- (1) **Definition of “Related” Civil Cases.** For purposes of this rule, a civil case shall be deemed related to another civil case only if:
 - (A) some or all of the parties are the same; and
 - (B) one or more of the following similarities exist:
 - i. the cases involve the same or substantially similar issues of fact;
 - ii. the cases arise out of the same occurrence, transaction or property;
 - iii. the cases involve insurance coverage for the same property, transaction or occurrence.
- (2) **Criminal and Civil Cases.** For the purposes of this rule, a civil case shall be deemed related to a criminal case only if:
 - ~~(A)~~ the civil case involves forfeiture of property from a transaction or occurrence that is the subject of a previously filed criminal case, enforcement of a restitution order or fine imposed in a previously filed criminal case or if it seeks some other form of civil enforcement relief relating to a previously filed criminal case.
- (3) **Common Question of Law Not Sufficient.** Civil cases, even when they involve some or all of the same parties, shall not be deemed related to each other solely on the ground that they:
 - (A) involve the same or substantially similar challenges to a law, regulation, or government policy or practice; or
 - (B) otherwise involve a common question of law.
- (4) **Time Limitation.** Civil cases shall not be deemed related if more than two years have lapsed since the closing of the earlier case.
- ~~(5)~~ **Social Security Cases. Any social security case filed in the district court following remand shall be deemed related to the initial case notwithstanding subsection (g)(4).**
- (6) Designation of Relatedness.** If the plaintiff (or other party filing the initial pleading) believes that the case is related to any earlier filed case, whether or not the earlier case is still open (provided that not more than two years has elapsed since the closing of the earlier case), that party shall:
 - (A) notify the clerk by notation on the civil category sheet indicating the title and number of the earlier filed case; and

(B) file a written certification in the later-filed case specifically stating the basis for designating the two cases as related.

(C) Unless good cause is shown, designation of relatedness by plaintiff (or other party filing the initial pleading) shall be made at the time of the filing of the initial pleading.

(67) Objection to Designation of Relatedness or Lack of Designation of Relatedness.

(A) If the defendant (or other responding party) believes that a case that has been designated as related should not have been so designated, that party shall file a motion in the later filed case to return the case to the clerk for reassignment.

(B) If the defendant (or other responding party) believes that a case that has not been designated as related should have been so designated, that party shall file a motion in the later filed case for the judge's consideration of transfer or reassignment of the case pursuant to Section i of this Rule.

(C) Unless good cause is shown, objection to designation of relatedness or lack of designation of relatedness shall be made within 30 days of a responsive pleading being filed.

(78) Assignment by Clerk. The clerk shall assign related cases to the same district judge without regard to the number of other cases in that category previously assigned to that judge. Related cases shall be counted as cases assigned, except as the chief judge may otherwise direct.

(89) Correction of Designation as "Related." The assignment of cases as related by the clerk shall be subject to correction only by the district judge to whom they have been assigned, who shall return cases erroneously assigned on that basis to the clerk for reassignment.

(910) Correction of Designation as "Not Related." The treatment of a case as not related to another case shall be subject to correction only by the joint decision of the district judge to whom it has been assigned and the district judge to whom it should be assigned, if related to an earlier filed case. The judges may then transfer the case pursuant to Section i of this Rule and shall notify the clerk of the transfer.